any state in the Union: yet, the attorney-general himself has taken some pains to show, that no action whatever is maintainable against the United States. I shall, therefore, confine myself, as much as possible, to the particular question before the court, though every thing I have to say upon it will effect every kind of suit, the object of which is to compel the payment of money by a state.

The question, as I before observed, is—will an action of *assumpsit* lie against a state? If it will, it must be in virtue of the constitution of the United States, and of some law of congress conformable thereto. The part of the constitution concerning the judicial power, is as follows, viz: Art. III., § 2. The judicial power shall extend, (1) To all cases, in law and equity, arising under the constitution, the laws of the United States, and treaties made, or which shall be made, under their authority: (2) To all cases affecting ambassadors, or other public ministers and consuls: (3) To all cases of admiralty and maritime jurisdiction: (4) To all controversies to
*431] which the *United States shall be a party: (5) To controversies between two or more states; between a state and citizens of another state; between citizens of different states; between citizens of the same state, claiming lands under grants of different states; and between a state or the citizens thereof, and foreign states, citizens or subjects. The constitution, therefore, provides for the jurisdiction wherein a state is a party, in the following instances: 1st. Controversies between two or more states: 2d. Controversies between a state and citizens of another state: 3d. Controversies between a state, and foreign states, citizens or subjects. And it also provides, that in all cases in which a state shall be a party, the supreme court shall have original jurisdiction.

The words of the general judicial act, conveying the authority of the supreme court, under the constitution, so far as they concern this question, are as follows: § 13. "That the supreme court shall have exclusive jurisdiction of all controversies of a civil nature, where a state is a party, except between a state and its citizens; and except also, between a state and citizens of other states or aliens, in which latter case, it shall have original, but not exclusive jurisdiction. And shall have, exclusively, all jurisdiction of suits or proceedings against ambassadors or other public ministers, or their domestics or domestic servants, as a court of law can have or exercise consistently with the law of nations; and original, but not exclusive jurisdiction, of all suits brought by ambassadors or other public ministers, or in which a consul or vice-consul shall be a party."

The supreme court hath, therefore, *first*, exclusive jurisdiction in every controversy of a civil nature: 1st. Between two or more states: 2d. Between a state and a foreign state: 3d. Where a suit or proceeding is depending against ambassadors, other public ministers, or their domestics or domestic servants. *Second*, original, but not exclusive jurisdiction, 1st. Between a state and citizens of other states: 2d. Between a state and foreign citizens or subjects: 3d. Where a suit is brought by ambassadors or other public ministers: 4th. Where a consul or vice-consul is a party. The suit now before the court (if maintainable at all) comes within the latter description, it being a suit against a state by a citizen of another state.

The constitution is particular in expressing the parties who may be the objects of the jurisdiction in any of these cases, but in respect to the subject